

INSPECTION AND REVIEW OF EDUCATION RECORDS

This regulation supports [Policy 8630](#) and provides specific instructions related to the inspection and review of educational records.

- A. Notification of Rights. The parents of students in attendance and eligible students in attendance shall be notified annually of their rights pertaining to student records in Loudoun County Public Schools' Student Rights and Responsibilities Handbook (SR&R). The SR&R is provided to each student and is available electronically on the Division's website.
- B. FERPA. Information regarding the Family Educational Rights and Privacy Act (FERPA) can be found [here](#).
- C. Filing a Complaint. A parent or eligible student has the right to file a written complaint regarding an alleged violation of their rights under FERPA or the Protection of Pupil Rights Amendment (PPRA) with the U.S. Department of Education's Student Privacy Policy Office (SPPO). The rights afforded to parents under FERPA generally transfer to a student when the student turns eighteen years old or when the student begins attending a post-secondary institution at any age. The rights afforded to parents under PPRA transfer to the student when the student turns eighteen years old or when the student becomes an emancipated minor at any age. Once the rights afforded to parents transfer to the student, only eligible students may file complaints alleging a violation of FERPA or PPRA. Instructions for filing and emailing a complaint under FERPA and the PPRA may be found at <https://studentprivacy.ed.gov/file-a-complaint>. Complaints may also be submitted by mail to:

U.S. Department of Education
Student Privacy Policy Office
400 Maryland Ave, SW
Washington, DC 20202-8520

- D. Procedure to Opt-In to the Release of Directory Information. These procedures can be found in [Policy 8640](#) (Disclosure of Student Personally Identifiable Information) and Other Educational Records.
- E. Procedure for Records Requests.
1. The parent or eligible student will complete the [LCPS FERPA Request Form](#) or the [LCPS Release/Exchange of Information Form](#) and submit it to the principal

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(custodian of records) or designee. Proper identification must be provided. If the individual is a student and is not an eligible student as defined in subparagraph (A)(3) of [Policy 8630](#), the student must present written authorization from their parent/guardian. The principal will confirm such written authorization.

2. After the principal confirms the identifications and authorizations (where applicable), the principal or designee will schedule a time during the regular working hours of their office and within a reasonable time, but no later than 45 days of the request, for the individual to inspect and review the records.

3. If a copy of the records is requested and the custodian of records cannot provide it immediately, the copy may be: (1) mailed with permission of the requestor; (2) emailed in an encrypted format with permission of the requestor; or (3) picked up from the school office within a reasonable amount of time after becoming available.

4. No copies of records shall be mailed in response to parent or eligible student telephone requests. Copies may be sent in response to such written requests where the custodian of records has no reason to doubt the authenticity of the request.

F. Procedure for Amendment of a Student Record.

1. A parent or eligible student who believes any part of the student's records is inaccurate, misleading, or a violation of the student's privacy right may complete the [LCPS Student Record Amendment Form](#). The parent or eligible student must identify, in writing, the portion of the record believed to contain information that is deemed inaccurate, misleading, or a violation of the student's privacy rights. While FERPA affords eligible students the right to seek to amend education records, this right cannot be used to challenge a grade, an individual's opinion, or a substantive decision made by a school about a student. Such amendment procedure is intended to ensure schools conform to fair recordkeeping practices—not to supplant the accepted standards and procedures for making academic assessments, disciplinary rulings, or placement determinations.

2. Within 15 days after receipt of the request, the school administrator will either deny the request or amend the record as requested and notify the parent or eligible student of the decision in writing.

3. If the principal (custodian of the records) denies the request to amend the records, the parent or eligible student will be informed of the right to appeal the decision and the right to have their appeal heard at a FERPA hearing conducted by LCPS. However, if FERPA's amendment procedures are not applicable to a parent's or eligible

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student's request for amendment of education records (i.e., such a request seeks to challenge a grade, opinion, or substantive decision made by a school about a student), LCPS is not required under FERPA to hold a hearing on the matter.

4. If a hearing is permissible and desired, the parent or eligible student will notify the Assistant Superintendent for Student Services, in writing, who shall notify their designee to schedule a hearing within 30 days and notify the parent or eligible student at least 5 days prior to such hearing of the time and place.

5. The hearing will be conducted by the Assistant Superintendent for Student Services or designee. At the hearing:

- a. The parent or eligible student may present evidence in support of a concern that the student's record is inaccurate, misleading, or in violation of the student's privacy rights;
- b. The parent or eligible student may be assisted or represented by an advocate, including legal counsel;
- c. LCPS may be assisted or represented by legal counsel; and
- d. The decision reached should be based solely on evidence presented at the hearing.

6. LCPS should notify the parent or eligible student of its decision in writing within a reasonable time, but not later than 45 days after the hearing concludes. LCPS should include a summary of the evidence and reasons for its decision.

- a. If the decision grants the parent's or eligible student's request for amendment, the record will be amended in accordance with LCPS's decision.
- b. If the decision denies the parent's or eligible student's request for amendment, they will be informed of their right to place a statement commenting on the information in the student's record, which will be maintained as part of the student's record for as long as the contested portion of the record remains therein. Any disclosure of the contested portion of the record shall include the statement or explanation the parent or eligible student submits.

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Leg. Refs: [20 U.S.C. § 1232g](#); [34 C.F.R. Part 99](#); [20 U.S.C. § 1232h](#)

Cross Refs: Policy [8630](#), Inspection and Review of Education Records; Policy [8640](#) Disclosure of Personally Identifiable Information; [LCPS FERPA Request Form](#); [LCPS Release/Exchange of Information Form](#); [LCPS Student Record Amendment Form](#); [U.S. Department of Education Family Educational Rights and Privacy Act \(FERPA\) Information](#)